

ATTORNEY OR PARTY WITHOUT ATTORNEY (Name, state bar number, and address): PATENAUDE & FELIX, A.P.C. Raymond A. Patenaude (128855) / Laura M. D'Anna (266113) Nathalia A. Aguirre (337628) / Dinari J. Lee (314542) / Abril Saglio-Ruiz (299586) 9619 Chesapeake Drive, Suite 300, San Diego, CA 92123 California DFPI Debt Collector License #10678-99 TELEPHONE NO.: (858) 244-7600 FAX NO. (Optional): (858) 836-0318 E-MAIL ADDRESS (Optional): SD.Legal@Pandf.us ATTORNEY FOR (Name): PLAINTIFF	FOR COURT USE ONLY M. Suarez Filed July 3, 2024 Clerk of the Court Superior Court of CA County of Santa Clara 24CV430522 By: ychavez
SUPERIOR COURT OF CALIFORNIA, COUNTY OF SANTA CLARA STREET ADDRESS: 191 NO. FIRST STREET MAILING ADDRESS: 191 NO. FIRST STREET CITY AND ZIP CODE: SAN JOSE CA 95113 BRANCH NAME: SANTA CLARA CIVIL DIVISION	
PLAINTIFF: TD BANK USA, N.A. DEFENDANT: NATHALI M CRUZ,	
JUDGMENT ☒ By Clerk ☐ By Court ☒ By Default ☐ On Stipulation ☐ After Court Trial ☐ Defendant Did Not Appear at Trial	CASE NUMBER: 24CV430522

JUDGMENT1. ☒ **BY DEFAULT**

- a. Defendant was properly served with a copy of the summons and complaint
- b. Defendant failed to answer the complaint or appear and defend the action within the time allowed by law.
- c. Defendant's default was entered by the clerk upon plaintiff's application.
- d. ☒ **Clerk's Judgment** (Code Civ. Proc., § 585(a)). Defendant was sued only on a contract or judgment of a court of this state for the recovery of money.
- e. ☐ **Court Judgment** (Code Civ. Proc., § 585(b)). The court considered
 - (1) ☐ plaintiff's testimony and other evidence.
 - (2) ☐ plaintiff's written declaration (Code Civ. Proc., § 585(d)).

2. ☐ **ON STIPULATION**

- a. Plaintiff and defendant agreed (stipulated) that a judgment be entered in this case. The court approved the stipulated judgment and
- b. ☐ the signed written stipulation was filed in the case.
- c. ☐ the stipulation was stated in open court ☐ the stipulation was stated on the record.

3. ☐ **AFTER COURT TRIAL**. The jury was waived. The court considered the evidence.

- a. The case was tried on (date and time):
before (name of judicial officer):
- b. Appearances by:

☐ Plaintiff (name each): (1) (2) ☐ Continued on Attachment 3b. ☐ Defendant (name each): (1) (2) ☐ Continued on Attachment 3b.	☐ Plaintiff's attorney (name each): (1) (2) ☐ Defendant's attorney (name each): (1) (2)
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- c. ☐ Defendant did not appear at trial. Defendant was properly served with notice of trial.
- d. ☐ A statement of decision (Code Civ. Proc., § 632) ☐ was not ☐ was requested.

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JUDGMENT IS ENTERED AS FOLLOWS BY: ☐ THE COURT ☒ THE CLERK

4. ☐ **Stipulated Judgment.** Judgment is entered according to the stipulation of the parties.

5. **Parties.** Judgment is

- | | |
|---|---|
| a. ☒ for plaintiff (<i>name each</i>):
TD BANK USA, N.A.
and against defendant (<i>name</i>):
NATHALI M CRUZ,
☐ Continued on Attachment 5a.
b. ☐ for defendant (<i>name each</i>): | c. ☐ for cross-complaint (<i>name each</i>):
and against cross-defendant (<i>name each</i>):
☐ Continued on Attachment 5c.
d. ☐ for defendant (<i>name each</i>): |
|---|---|

6. **Amount.**

- | | |
|--|---|
| a. ☒ Defendant named in item 5a above must pay plaintiff on the complaint: | c. ☐ Cross-defendant named in item 5c above must pay cross-complainant on the cross-complaint: |
|--|---|

(1) ☒ Damages	\$472.25
(2) ☐ Prejudgment interest at the annual rate of 0.00%	
(3) ☐ Attorney fees	
(4) ☒ Costs	\$383.00
(5) ☐ Other (<i>specify</i>):	
(6) TOTAL	\$855.25

(1) ☐ Damages	\$
(2) ☐ Prejudgment interest at the annual rate of %	
(3) ☐ Attorney fees	\$
(4) ☐ Costs	\$
(5) ☐ Other (<i>specify</i>):	\$
(6) TOTAL	\$

- | | |
|---|---|
| b. ☐ Plaintiff to receive nothing from defendant named in item 5b.
☐ Defendant named in item 5b to recover costs \$
☐ and attorney fees \$ | d. ☐ Cross-complainant to receive nothing from cross-defendant named in item 5d.
☐ Cross-defendant named in item 5d to recover costs \$
☐ and attorney fees \$ |
|---|---|

7. ☒ Judgment debtor is a natural person, and as provided in Code Civ. Proc., §§ 683.110, 685.010:
 \$ of this judgment is on a claim related to medical expenses
 \$ 855.25 of this judgment is on a claim related to personal debt

8. ☐ Other (*specify*):

Date: ☐ JUDICIAL OFFICER
 Date: July 3, 2024 ☒ Clerk, by y chavez, Deputy



CLERK'S CERTIFICATE (*Optional*)

I certify that this is a true copy of the original judgment on file in the court.
 Date:

Clerk, by _____, Deputy

(SEAL)